

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Ho	Team: Team # 5	CCRB Case #: 201409100	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/03/2014 3:05 PM	Location of Incident: § 87(2)(b)	Precinct: 25	18 Mo. SOL 3/3/2016	EO SOL 3/3/2016	
Date/Time CV Reported Thu, 09/04/2014 12:18 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 09/04/2014 12:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jhonnier Salazar	12746	937468	025 PCT
2. POM Edward Salthouse	11663	949609	025 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Pablo Taveras	18813	943862	025 PCT
2. POM Edwin Villanueva	01513	952324	025 PCT
3. SGT Mario Morales	02932	925776	025 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jhonnier Salazar	Abuse: PO Jhonnier Salazar stopped § 87(2)(b)	§ 87(2)(b)
B.POM Edward Salthouse	Abuse: PO Edward Salthouse stopped § 87(2)(b)	§ 87(2)(b)
C.POM Edward Salthouse	Abuse: PO Edward Salthouse searched § 87(2)(b)	§ 87(2)(b)
D.POM Jhonnier Salazar	Abuse: PO Jhonnier Salazar searched § 87(2)(b)	§ 87(2)(b)
E.POM Edward Salthouse	Abuse: PO Edward Salthouse searched § 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On September 3, 2014, at approximately 3:05 p.m., § 87(2)(b) and § 87(2)(b) alleged they were approached from behind by two officers (identified by the investigation as PO Jhonnie Salazar and PO Edward Salthouse) as they were crossing East 135th Street at Madison Avenue in Manhattan (**Allegations A and B**). § 87(2)(b) was immediately handcuffed by PO Salazar. PO Salthouse asked § 87(2)(b) what the napkin in her hand was and snatched it from her (**Allegation C**). PO Salthouse then searched § 87(2)(b)'s handbag (Allegation D continued). § 87(2)(b) asked the officers why he was handcuffed and PO Salthouse informed him he “fit the description,” but did not provide any other information. Meanwhile, PO Salazar frisked and searched § 87(2)(b)'s pants pockets (**Allegation D**). Five minutes later, PO Salthouse reached between § 87(2)(b)'s legs and patted his genitals and buttocks (**Allegation E**). PO Salthouse also removed § 87(2)(b)'s wallet from his back pocket; after he searched through it, he replaced it in § 87(2)(b)'s front pocket (Allegation E continued). PO Salthouse instructed PO Salazar to remove § 87(2)(b) from his handcuffs, and informed § 87(2)(b) and § 87(2)(b) they were free to go. § 87(2)(b) and § 87(2)(b) were not arrested or summonsed as a result of this incident (complaint encl. 5a-f, § 87(2)(b)'s CCRB statement encl. 6a-I; § 87(2)(b)'s CCRB statement encl. 7a-f). § 87(4-b) § 87(2)(g)

Mediation, Civil and Criminal Conviction Histories

Mediation was offered to § 87(2)(b) in person. § 87(2)(b) rejected mediation. § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of March 6, 2015 with regard to the incident (encl. 17y). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. 3a-b).
- PO Jhonnie Salazar has been a member of the service for 10 and there are no substantiated CCRB allegations against him (encl. 2a).
- PO Edward Salthouse has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. 2b).

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Explanation of Subject Officer Identification

§ 87(2)(b) and § 87(2)(b) described the officer who stopped § 87(2)(b) as a Caucasian male, 6'0"-2" tall, slim/medium build, brown (balding) hair, and in his late 30s to 40s. In the single shot photo viewing conducted with § 87(2)(b) tentatively identified PO Salthouse as the subject officer. PO Salthouse is a Caucasian male, is 6'2" tall, weighs 250 pounds, with a shaved/bald head (brown hair), blue eyes, and was § 87(2)(b) old at the time of the

incident. On September, 3, 2014, PO Salthouse was assigned to the 25th Precinct SNEU team during Tour 3 with PO Salazar, PO Pablo Taveras, Sgt. Mario Morales, PO Jose Urena, PO Alex Perez, PO Jonathan Rodriguez, and PO Edwin Villanueva. Within the 25th Precinct SNEU team, PO Salthouse confirmed he was the only Caucasian officer on duty and according to his memo book, was partners with PO Salazar and PO Taveras. PO Salthouse's presence in the vicinity of East 135th Street and Madison Avenue prior to 3:30 p.m. is confirmed by his partner PO Salazar's arrest across from 60 East 135th Street at that time. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) provided a physical description of the officer who stopped § 87(2)(b) as a Hispanic male, 5-7"-8" tall, medium/stocky build, black spiky hair, with no scars, and in his late 20s to 30s. In the single shot photo viewing conducted with § 87(2)(b) he tentatively identified PO Salazar as the subject officer. PO Salazar is a Hispanic male, is 5'7" tall, weighs 190 pounds, with brown spiky hair, a trimmed beard, and was § 87(2)(b) old at the time of the incident. PO Salazar also has a noticeable scar/mark on his forehead. According to his memo book, PO Salazar was partners with PO Salthouse and PO Taveras. Although PO Taveras is also a § 87(2)(b)-old Hispanic male, he is 5'11" tall and weighs 205 pounds. In the single shot photo viewing conducted with § 87(2)(b) she noted there was a possibility PO Douglas Perez of the 25th Precinct Conditions team was the subject officer. PO Perez is a Hispanic male, is 5'7" tall, weighs 170 pounds, with short brown hair, and was § 87(2)(b) old (encl. 13j). On September 3, 2014, PO Perez was assigned to the 25th Precinct Conditions team during Tour 2 and has no entries in his memo book regarding this incident (encl. 14f; encl. 13h-i). § 87(2)(g)

Recommendations

- **Allegation A – Abuse of Authority: PO Jhonnier Salazar stopped** § 87(2)(b)
- **Allegation B – Abuse of Authority: PO Edward Salthouse stopped** § 87(2)(b)
- **Allegation C – Abuse of Authority: PO Edward Salthouse searched** § 87(2)(b)
- **Allegation D – Abuse of Authority: PO Jhonnier Salazar searched** § 87(2)(b)
- **Allegation E – Abuse of Authority: PO Edward Salthouse searched** § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged they were approached from behind by PO Jhonnier Salazar and PO Edward Salthouse. § 87(2)(b) was immediately handcuffed by PO Salazar as PO Salthouse asked § 87(2)(b) what the napkin in her hand was and snatched it from her. As PO Salthouse searched § 87(2)(b)'s handbag, § 87(2)(b) asked the officers why he was handcuffed and was informed by PO Salthouse that he "fit [a] description." Meanwhile, PO Salazar searched § 87(2)(b)'s pants pockets. § 87(2)(b) also claimed that PO Salthouse reached between his legs to pat his genitals and buttocks, took his wallet out from his back pocket, looked through it, and replaced it in his front pocket.

PO Salazar and PO Salthouse did not recall stopping § 87(2)(b) and § 87(2)(b). PO Salthouse did not recall searching § 87(2)(b). In addition, PO Salazar and PO Salthouse did not recall searching § 87(2)(b).

There are no EVENTS or stop and frisk reports documenting this incident (encl. 14a-b; encl. 14c).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

- § 87(4-b), § 87(2)(g)

